

24VECV03558 24VECV03558

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-11

Motion: PLAINTIFF'S MOTION TO COMPEL DEFENDANT'S COMPLIANCE WITH THE COURT'S MARCH 17, 2026, ORDER AND REQUEST FOR SANCTIONS

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Case Number: 24VECV03558 Hearing Date: September 11, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

JEFF BYNUM and the ESTATE OF ALEXANDRIA BYNUM,

Plaintiff,

vs.

TARZANA TREATMENT CENTERS, INC, business entity unknown,
DOES 1 TO 50, inclusive,

Defendants.

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CASE NO: 24VECV03558

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
TO COMPEL DEFENDANT'S COMPLIANCE WITH THE COURT'S MARCH 17, 2026, ORDER AND
REQUEST FOR SANCTIONS

Dept. U

8:30 a.m.

September 11, 2026

A. BACKGROUND

This case is a wrongful death action against
an addiction treatment center.

On July 26, 2024,
Plaintiffs Jeff Bynum ("Plaintiff") and the Estate of Alexandria Bynum filed a
complaint against Defendant Tarzana Treatment Centers, Inc. ("Defendant")
alleging a single cause of action for negligence. The complaint alleges Plaintiff's daughter Alexandria

Bynum ("Decedent") died of an overdose within hours of being negligently discharged from Defendant's drug rehabilitation treatment facility.

On January 8, 2026, Plaintiff filed a motion to compel inspection of Defendant's email system. The Court granted the motion on March 17, 2026, entering a Stipulation and Order Re: Inspection and permitting Plaintiffs to inspect Tarzana's computer and email system in the manner and scope set forth in the order. On March 20, 2026, the inspection occurred.

On May 28, 2026, Plaintiff filed the instant motion to compel Defendant's compliance with the Court's March 17, 2026, Order (the "Order").

On August 18, 2026, Defendant filed an opposition brief.

B. RULING

Plaintiff Jeff Bynum's motion to compel compliance with the Court's March 17, 2026, Order is GRANTED.

Plaintiff's request for monetary sanctions against Defendant and its counsel is DENIED.

C. LEGAL STANDARD

"If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Code Civ. Proc., § 2031.320, subd. (a).)

D. DISCUSSION

Plaintiff moves for an order to compel Defendant's compliance with the Court's March 17, 2026, order. Plaintiff argues he has been diligent in

attempting to obtain important and necessary documents in this matter, including multiple sets of written discovery and a two-volume deposition of Defendant's PMK. However, Defendant refuses to comply with the Order. Plaintiff argues Defendant's HIPAA and third-party privacy concerns do not override the Order. Plaintiff seeks sanctions against Defendant and their counsel.

In opposition, Defendant argues Defendant is making diligent efforts to comply with the Order but that extensive redactions are required due to the highly sensitive private medical data of non-involved third parties. Defendant's counsel declares Defendant anticipates the redaction will be complete prior to the date of the hearing and that production will accordingly be forthcoming before that date. (Loeck Decl., ¶ 4.)

There is no dispute Defendant has failed to fully comply with the Order. Defendant concedes production remained incomplete as of August 18, 2026. The Court thus retains authority to order compliance. (Code Civ. Proc., § 2031.320, subd. (a).) While Defendant argues Plaintiff's motion should be denied because they plan to produce all documents prior to the hearing date, there is nothing in the current record indicating all documents have been produced.

Therefore, Plaintiff's motion to compel compliance is granted. Defendant is ordered to complete its production of the documents obtained at the March 20, 2026, inspection of Defendant's email system, consistent with the Order. Plaintiff's request that Defendant produce all the documents without redaction is denied.

Plaintiff seeks monetary sanctions against Defendant and its counsel in the amount of \$6,750.00 for the time and expense in preparing the ex parte application, the instant motion and all meet and confer efforts, and to pay Plaintiff's expert bill for conducting the inspection and reviewing Defendant's initial production.

The court shall impose a monetary sanction "against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial

justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.320, subd. (b).)

The Court finds
imposition of sanctions at this juncture would be unjust. The substantial volume of material requiring redaction reasonably accounts for Defendant’s delay. Further, Defendant’s counsel declares an intent to complete production prior to the hearing for this matter.

E. CONCLUSION

Plaintiff Jeff Bynum’s motion to compel compliance with the Court’s
March 17, 2026, Order is GRANTED.

Plaintiff’s request for monetary
sanctions against Defendant and its counsel is DENIED.

Plaintiff is ORDERED to give
notice.

DATED: September 11, 2026

Lee S. Arian

Judge of the
Superior Court